

Federal Special Education Law Guide

IDEA, ADA, and Section 504 — Plain Language for Every Parent

Knowledge is power. Partnership is progress. Together — the IEP gets APPROVED.

PART 1: IDEA — Individuals with Disabilities Education Act

20 U.S.C. § 1400 et seq.

What IDEA Is

IDEA is the primary federal law that governs special education in the United States. It guarantees eligible children with disabilities the right to a free appropriate public education (FAPE) in the least restrictive environment (LRE). IDEA applies to children from birth through age 21.

Who IDEA Covers

- Children ages 3-21 with one or more of 13 disability categories
- Disability must adversely affect educational performance
- Child must require specially designed instruction as a result
- Eligible disability categories include: autism, deaf-blindness, deafness, emotional disturbance, hearing impairment, intellectual disability, multiple disabilities, orthopedic impairment, other health impairment (includes ADHD), specific learning disability, speech or language impairment, traumatic brain injury, visual impairment

Your Key Rights Under IDEA

Right to FAPE: Your child is entitled to special education and related services at no cost to your family. (20 U.S.C. § 1412(a)(1))

Right to LRE: Your child must be educated alongside children without disabilities to the maximum extent appropriate. (34 CFR § 300.114)

Right to an IEP: Your child is entitled to an Individualized Education Program developed by a team that includes you. (20 U.S.C. § 1414(d))

Right to Evaluation: You can request a full evaluation at no cost. The school must respond within 60 days (or your state's timeline). (34 CFR § 300.301)

Right to Prior Written Notice: The school must notify you in writing before making any changes to your child's placement or services. (34 CFR § 300.503)

Right to Consent: The school cannot evaluate your child or change their placement without your written consent. (34 CFR § 300.300)

Right to Dispute: You have the right to mediation, state complaint, or due process hearing if you disagree with the school. (34 CFR § 300.506-511)

IDEA Key Timelines

Timeline	Requirement
Initial Evaluation	60 days from parental consent (or state timeline)
IEP Development	Within 30 days of eligibility determination
IEP Review	At least annually
Re-Evaluation	At least every 3 years
Prior Written Notice	Reasonable time before proposed changes

PART 2: ADA — Americans with Disabilities Act

42 U.S.C. § 12101 et seq. | Title II applies to public schools

What ADA Is

The ADA is a civil rights law that prohibits discrimination against people with disabilities in all areas of public life, including schools. Title II of the ADA applies to public schools and requires them to provide equal access and reasonable modifications for students with disabilities — even if those students do not have an IEP.

How ADA Differs From IDEA

	IDEA	ADA Title II
Purpose	Provide special education	Prevent discrimination
Who qualifies	13 specific disability categories	Any disability that limits a major life activity
What it provides	IEP with services	Reasonable modifications & equal access
Requires IEP?	Yes	No — uses 504 Plan or informal accommodations
Applies to	Ages 3-21	All ages, all public entities

Your Key Rights Under ADA in Schools

- Equal access to all school programs, activities, and facilities
- Reasonable modifications to policies, practices, and procedures
- Protection from retaliation for asserting your rights

- Accessible communications (interpreters, alternative formats)
 - The right to file a complaint with the U.S. Department of Justice
-

PART 3: Section 504 — Rehabilitation Act

29 U.S.C. § 794 | Implemented by 34 CFR Part 104

What Section 504 Is

Section 504 is a civil rights law that prohibits discrimination against students with disabilities in programs receiving federal funding — which includes virtually all public schools. A student who does not qualify for an IEP under IDEA may still be entitled to a 504 Plan with accommodations.

Who Qualifies for Section 504

A student qualifies if they have a physical or mental impairment that substantially limits one or more major life activities, including: learning, reading, concentrating, thinking, communicating, caring for oneself, walking, seeing, hearing, speaking, breathing, working.

Common 504 Accommodations

- Extended time on tests and assignments
- Preferential seating
- Reduced homework load or modified assignments
- Access to notes or outlines
- Frequent breaks
- Use of assistive technology
- Verbal testing options
- Modified grading or testing environment

Key Difference: 504 vs IEP

A 504 Plan provides accommodations — changes to how a student learns or is tested. An IEP provides specially designed instruction — changes to what a student is taught. If your child needs accommodations only, a 504 Plan may be appropriate. If your child needs specialized instruction, an IEP is the right tool.

Need Help Knowing Which Law Applies to Your Child?

Ask Ada at iepapproved.com — describe your situation and Ada will explain which laws apply, what rights your child has, and what steps you can take. Free, always.